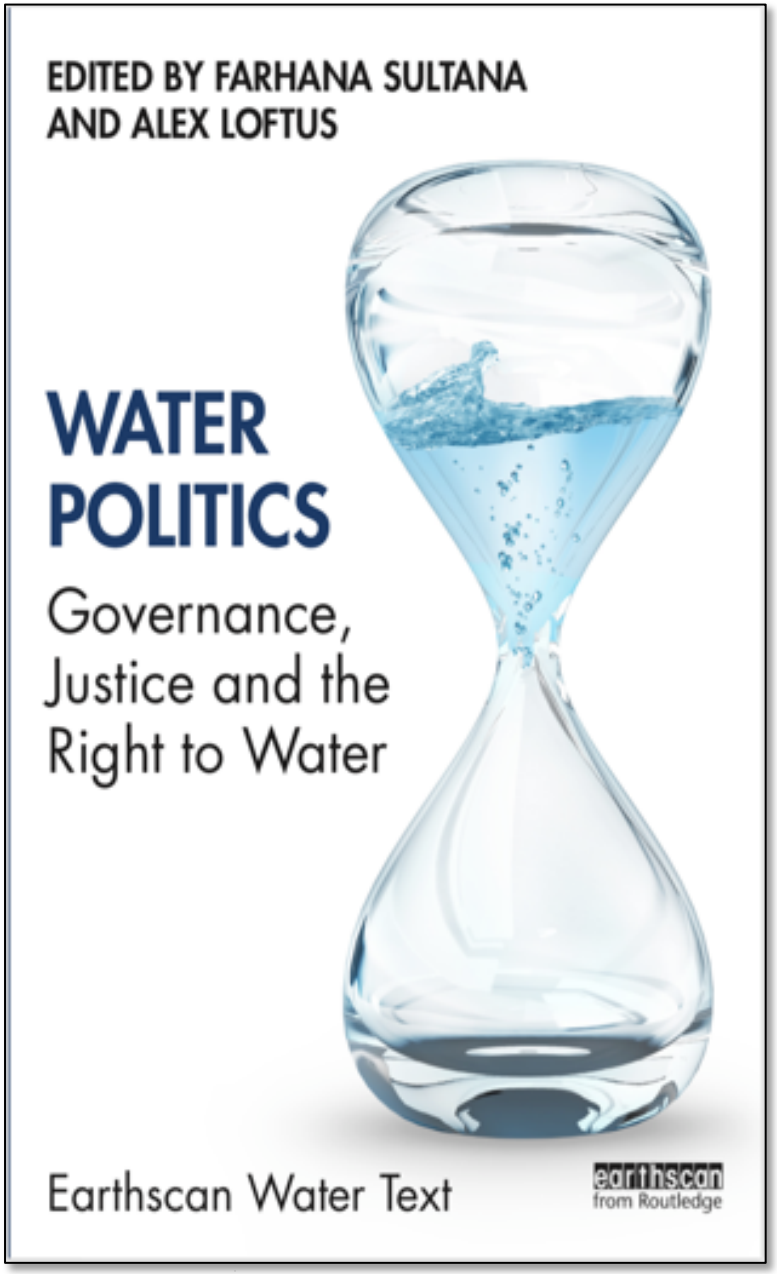

"The right to water remains elusive for a great number of people around the world. Despite decades of efforts by activists, policy-makers, and committed scholars, access to water remains deeply contested and unevenly distributed. This superb collection teases out why this is the case and, more importantly, presents a range of actions and principles, mobilised by a great variety of communities, that open possible pathways for a more just, democratic and egalitarian distribution of a key resource for securing livelihood. This is a must read for all those who still believe that a more humane, sustainable, and egalitarian access to the earth's waters is not only desirable, but necessary."

– Professor Erik Swyngedouw, The University of Manchester, UK and Honorary Doctor of Roskilde University, Denmark and University of Malmö, Sweden

"The world faces a growing water crisis. This is not just about water availability, but about distribution: who gets what and how water is used. Sultana and Loftus' book is ground-breaking. It provides a narrative of and pathways to water justice. It is a must read for anyone who cares water and our common future."

– Professor R. Quentin Grafton, The Australian National University and the UNESCO Chair in Water Economics and Transboundary Water Governance.

"This collection of essays provides much-needed intellectual inspiration for re-imagining water. Its clear message is that realizing the right to water involves re-organizing and re-thinking ways of relating to water, but also requires engaging with the wider transformations needed to make this world more sustainable and just."

– Professor Margreet Zwarteveen, Professor of Water Governance, IHE Delft Institute for Water Education and University of Amsterdam, The Netherlands

Water Politics

Scholarship on the right to water has proliferated in interesting and unexpected ways in recent years. This book broadens existing discussions on the right to water in order to shed critical light on the pathways, pitfalls, prospects, and constraints that exist in achieving global goals, as well as advancing debates around water governance and water justice.

The book shows how both discourses and struggles around the right to water have opened new perspectives, politics and possibilities in water governance, fostering new collective and moral claims for water justice, while effecting changes in laws and policies around the world. In light of the 2010 UN ratification on the human right to water and sanitation, shifts have taken place in policy, legal frameworks, local implementation, as well as in national dialogues. Chapters in the book illustrate the novel ways in which the right to water has been taken up in locations drawn globally, highlighting the material politics that are enabled and negotiated through this framework in order to address ongoing water insecurities. This book reflects the urgent need to take stock of debates in light of new concerns around post-neoliberal political developments, the challenges of the Anthropocene and climate change, the transition from the Millennium Development Goals (MDGs) to the Sustainable Development Goals (SDGs), as well as the mobilizations around the right to water in the global North.

This book is essential reading for scholars and students of water governance, environmental policy, politics, geography, and law. It will be of great interest to policymakers and practitioners working in water governance and the human right to water and sanitation.

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Water Politics

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Edited by
Farhana Sultana and Alex Loftus

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Foreword

I am pleased to welcome the book organized by Sultana and Loftus. Their previous work – *The right to water: politics, governance and social struggles* – published in 2012, just after the recognition of the Human Rights to Water and Sanitation (HRtWS) by the UN General Assembly and the Human Rights Council, has played an important role in instigating intellectual and political discussions on the meaning of those rights. Correctly, they addressed tensions and possibilities, which helped to confirm the idea that, although key, the legal provision of the HRtWS alone is not sufficient to guarantee their realization nor to protect people living in vulnerable situations. They also stressed the risk that groups of interest in the water sector frame processes of water commodification and social exclusion as rights realization.

This book, published at a very timely moment – nine years after the first UN resolution – updates the debate from the perspective of the social sciences, particularly that of Critical Geography, through case studies and theoretical reflections. The exercise of articulating debates on the HRtWS together with other frameworks, such as water justice and water governance, as well as with the assessment of struggles of civil society for the realization of the rights in several countries, is a great added-value of the book. Comparing this book with the 2012 edition – perhaps through the biased perspective of someone who needs to be optimistic about the potentialities of the human rights framework – the current work acknowledges more clearly that the HRtWS are a powerful tool for a better future for the scenario of access to water services, providing a legal and political basis for diverse actors to struggle for them. However, I leave it to each reader to draw their own conclusion.

My experience as the UN Special Rapporteur on the human rights to safe drinking water and sanitation since December 2014, particularly in undertaking country visits, has revealed the potentialities of this framework as an analytical lens for assessing policies, institutional arrangements, and the current, real circumstances of access to services. This lens is not a static one but has also a potential for change, as pressure on governments for the progressive realization of those rights. At the same time, this experience has revealed that the major challenges are still in place and impede the true incorporation of these rights in the political arena due to a variety of reasons. Sometimes, it is more

comfortable for political actors to manage services through business as usual, in a technocratic way. Sometimes, there is really a lack of awareness about the HRtWS framework, from both governmental actors and/or from civil society organizations addressing water issues at national levels. The latter, more often than not, are simply absent or often focused on service implementation. Obviously, there are sound exceptions to this, such as those situations explored in the chapters of this volume addressing cases across countries.

One of the most stimulating activities of the mandate of the UN Special Rapporteur is the preparation of thematic reports, which aim to provide an interpretation of aspects of the HRtWS and to develop further issues still poorly understood in this regard. This is an intellectual endeavor, from the selection of the theme to the careful preparation of the report. In identifying the gaps of knowledge for the report themes (a total of 12 by the end of my two terms), I eventually came up with a three-dimensional analytical framework that I refer to as the "driver-policy-people" framework.

Drivers are macro-determinants for the realization, drawbacks, and even violations of human rights. They are indispensable factors in the assessment of how rights can be realized, demonstrating that there are structural barriers that often cannot be addressed at the implementation level. I have elaborated on development cooperation as a driver and an increasing trend in the water and sanitation sector, especially under the SDGs agenda, and my research has identified a significant human rights gap in most of the multilateral or bilateral funders in this regard (reports A/71/302[1] and A/72/127[2]). Another example is megaprojects and the ways that they impact the realization of the rights to water, considering all of the stages in the cycle of megaprojects, from the macro-planning (are they really the only alternative for national development?) to their decommissioning. This issue will be covered in a forthcoming report. Neoliberal policies are other possible drivers, which I am planning to address and elaborate in a future report.

The second dimension, public policies, corresponds to a lower level of determination in the realization of the HRtWS and is more susceptible to the influence of the water sector than other structural roots of the rights realization. Although legislation is fundamental for introducing binding rights in water policies, there are countries that have introduced in their legislation the right to water or the rights to water and sanitation but are not complying with the right's standards. What may induce the alignment of water and sanitation provisions with the HRtWS are policies infused by their framework, with proper accountability mechanisms. There are some elements of public policies that can benefit from this approach. Regulation is one of them, requiring a shift away from traditional economic regulation, which focusses mainly on the financial sustainability of providers, to a regulation framed by human rights (report A/HRC/36/45[3]). Another element sensitive to human rights is financing and the manner in which services balance expenses and revenues, which highlights issues of affordability regarding the access to services as well as the manner in which public finance is used in guaranteeing the access to them (report A/HRC/30/39[4]). Another example is how the principle of accountability must be introduced in policies, according to the human rights standards (report A/73/162[5]).

The "human" dimension aims to identify the most neglected population groups in relation to access to services, who are neglected either because they bear the greatest burden when services are inexistent or precarious – such as women, girls, or transgender persons – or because they are not targeted by public policies or providers – refugees, migrants, IDPs, homeless, prisoners, etc. (see report A/HRC/33/49[6] on gender issues and A/HRC/39/55[7] on forcibly displaced persons). Giving visibility to those who are invisible might result in different approaches from and in the empowerment of rights holders.

My final observation is that different elements of the framework described previously are addressed in this book and that those elements deliver a two-pronged message. First, that we are increasingly improving our understanding of the human rights to water and sanitation, their tensions, their potentialities, and their fragilities, as a tool for inclusion of those in the most vulnerable situations. Second, that the work is not finalized: we need ever more high-level contributions in this regard. My congratulations and my thanks to Sultana and Loftus, and to the authors of the collection, for their important contributions in filling those gaps.

Léo Heller
UN Special Rapporteur on the Human
Rights to Safe Drinking Water and Sanitation

Notes

1 undocs.org/A/71/302
2 undocs.org/A/72/127
3 https://undocs.org/A/HRC/36/45
4 https://undocs.org/A/HRC/30/39
5 https://undocs.org/A/73/162
6 https://undocs.org/A/HRC/33/49
7 https://undocs.org/A/HRC/39/55

Preface

This book has had an interesting gestation period. When our first edited book – *The right to water: politics, governance, and social struggles* – was published in 2012, it was received well, filling a lacuna in the existing water scholarship on the right to water, while bringing together a large number of international scholars covering a range of interdisciplinary perspectives. The book was translated into two other languages within the first two years of its publication. As a result, we started to receive requests from scholars and students from around the world to produce a second volume. The current book is the product of those requests as well as the persistent inquiries and nudges from our original commissioning editor Tim Hardwick (to whom we are very grateful). But the ultimate decision to bring together another set of excellent scholars was largely inspired by global shifts and events in water-related issues: the debates over the right to water had matured since its formalization in policy in 2010, the manner in which discourses and struggles around the right to water have gone global, and the ways in which scholars, activists, practitioners, and citizens have mobilized around that right in different ways. In addition, the scholarship on the right to water has proliferated in interesting and unexpected ways in recent years. We, therefore, felt it was time to address these issues in another book that could complement our first book and address the recent developments in water politics. This collection broadens existing discussions on the right to water in order to critically shed light on the pathways, pitfalls, prospects, and constraints that exist in achieving global goals, as well as advancing debates around water governance and water justice.

We are grateful to all the authors of the chapters for accepting our invitations to contribute, for being part of this collective journey, for responding graciously to rounds of feedback, and for immeasurable brilliance, camaraderie, and professionalism. A few of the chapters were presented at various conferences and workshops, and we collectively thank feedback from respective participants and discussants. We are grateful to Dr. Léo Heller, United Nations Special Rapporteur on the Human Rights to Safe Drinking Water and Sanitation, for graciously writing the Foreword to the book. For generous endorsements of the book, we thank Professors Erik Swyngedouw (University of Manchester), Quentin Grafton (Australian National University), and Margreet Zwarteveen (IHE Delft). We also

thank colleagues at Routledge for seeing the book through to production. Finally, we both are exceedingly grateful to our respective families for supporting us in all our endeavors.

This book, like the first one, is dedicated to all those worldwide who continue to struggle over water and those that fight for justice in water everywhere. The journey continues.

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